

26STLC03144 26STLC03144

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-24

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Case Number: 26STLC03144 Hearing Date: August 24, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Janie S. Kim dba Janie K. Designs' Motion to Compel Responses to Request for Production of Documents (Set One) is continued to 10/26/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 09/29/2026, Plaintiff is to file proof of service of the Motion and Notice of New Hearing Date upon Defendant Roseark, Inc.

Order to Show Cause Re: Legal Representation of Defendant Roseark, Inc. is scheduled for 09/22/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Analysis:

On May 7, 2026, Plaintiff Janie S. Kim dba Janie K. Designs ("Plaintiff"), in propria persona, filed the instant action for breach of contract and conversion against Defendants Roseark, Inc. ("Defendant Roseark, Inc.") and Roseark, LLC ("Defendant Roseark, LLC"). Defendant Roseark, Inc. filed its Answer to the Complaint on June 8, 2026. Plaintiff's request for default against Defendant Roseark, LLC was entered on July 13, 2026.

Plaintiff filed the instant Motion to Compel Responses to Request for Production of Documents (Set One) on July 17, 2026.

Discussion

The Motion is not accompanied by a proof of service demonstrating service of the moving papers or notice of the

hearing date upon Defendant Roseark, Inc. A motion and notice of hearing date must be served upon the opposing party at least 16 court days prior to the hearing; if served by mail the time increases by five days. (Code Civ. Proc., § 1005.) Plaintiff's failure to serve Defendant Roseark, Inc. with the Motion and notice of hearing by July 10, 2026 is a violation of due process and of the statutory notice requirements. (Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.) Therefore, the Motion cannot be granted at this time.

The Court additionally notes that Defendant Roseark, Inc.'s Answer was not filed by an attorney. (Answer, filed 06/08/26, p. 1.) It is black letter law that a corporation cannot represent itself in court. (Clean Air Transport Systems v. San Mateo County Transit Dist. (1988) 198 Cal.App.3d 576, 578 (citing Merco Constr. Engineers, Inc. v. Municipal Court (1978) 21 Cal.3d 724, 729-730).) This rule applies to all entities regarded as separate from their owners, including partnerships and unincorporated associations. (See Clean Air Transport Systems, supra, 19 Cal.App.3d at 578.) Accordingly, the Court finds that Defendant Roseark, Inc. cannot appear going forward without an attorney.

Conclusion

Plaintiff Janie S. Kim dba Janie K. Designs' Motion to Compel Responses to Request for Production of Documents (Set One) is continued to 10/26/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 09/29/2026, Plaintiff is to file proof of service of the Motion and Notice of New Hearing Date upon Defendant Roseark, Inc.

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Moving party to give notice.